MDM/ 13

IN THE CONSTITUTIONAL COURT OF ZIMBABWE

Civil Application No. CCZ 30/13

MUTUMWA DZIVA MAWERE **APPLICANT**

AND

REGISTRAR GENERAL **1ST RESPONDENT**

ZIMBABWE ELECTORAL COMMISSION **2ND RESPONDENT**

PRESIDENT OF ZIMBABWE **3RD RESPONDENT**

ATTORNEY GENERAL **4TH RESPONDENT**

SUPREME COURT OF ZIMBABWE
PO BOX CY 870 CAUSEWAY
27 JUN 2013
TIME 09:36
SIGN

HARARE: Wednesday the 26th day of June 2013

Before the Honourable **Mr Justice Chidyausiku,** Chief Justice
the Honourable **Mr Justice Malaba**, Deputy Chief Justice
the Honourable **Mrs Justice Ziyambi**, Judge of Appeal
the Honourable **Mr Justice Gwaunza**, Judge of Appeal
the Honourable **Mr Justice Garwe,** Judge of Appeal
the Honourable **Mrs Justice Gowora,** Judge of Appeal
the Honourable **Mr Justice Patel,** Judge of Appeal
the Honourable **Mr Justice Hlatshwayo,** Judge of Appeal
and the Honourable **Mr Justice Chiweshe,** Acting Judge of Appeal

F. Mahere, for the applicant
T. Thondlanga, for the 1st respondent
T.M Kanengoni, with C. Nyika for the 2nd respondent
No appearance for 3rd respondent
No appearance for 4th respondent

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WHEREUPON, after reading documents filed of record and hearing counsel,

IT IS ORDERED THAT:

1. The applicant Mutumwa Dziva Mawere born 11 January 1960 is a citizen of Zimbabwe by birth in terms of Section 36(1) of the Constitution of Zimbabwe Amendment (No. 20).
2. The 1st respondent is interdicted from demanding the applicant to first renounce his foreign-acquired citizenship before he can be issued with a national identity document.
3. The 1st respondent is directed to issue the applicant with a national registration document forthwith and in any event before the voter registration process being conducted by the 2nd respondent in terms of Section 6 (3) of the sixth schedule to the constitution is concluded.
4. 1st respondent pay costs.

BY THE COURT

REGISTRAR **nk**

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